

ACT No. IV OF 1886.

PASSED BY THE GOVERNOR GENERAL OF INDIA IN COUNCIL.

(Received the assent of the Governor General on the 29th January, 1886.)

An Act to amend section 265 of the Indian Contract Act, 1872.

IX of 1872. WHEREAS it is expedient to amend section 265 of the Indian Contract Act, 1872; It is hereby enacted as follows :—

1. For section 265 of the said Act the following shall be substituted, namely :—

“ 265. Where a partner is entitled to claim a dissolution of partnership, or where a partnership has terminated, the Court may, in the absence of any contract to the contrary, wind up the business of the partnership, provide for the payment of its debts and distribute the surplus according to the shares of the partners respectively.”

XIV of 1882. 2. In section 213 of the Code of Civil Procedure the words and figures from and including the word “applications” to the end of the section are hereby repealed.

New section substituted for section 265, Indian Contract Act. Winding up by Court on dissolution or after termination.

Repeal of part of section 213, Act XIV, 1882.